GOOD LIVING REAL ESTATE (PVT) LIMITED
versus
A ADAM AND COMPANY (PVT) LIMITED
and
SGI PROPERTIES (PVT) LIMITED
and
GARABGA NCUBE AND PARTNERS

HIGH COUR OF ZIMBABWE
MANYANGADZE J
HARARE, 9 July 2025 & 28 January 2026

Opposed application

T Zhuwarara, for the applicant
F Mahere, for the respondents

MANYANGADZE J:

INTRODUCTION

` The applicant seeks relief that combines both a mandatory and prohibitory interdict against the respondents. The order sought is couched in the following terms:

> "1. The money collected since 2014 to 2018 and remitted in the 3rd Respondent Trust Account, all arrear rentals the Respondents collected in (*sic*) form of cash or though their personal accounts and money's (*sic*) sitting in the trust account of the Law Society of Zimbabwe be shared in accordance to the partnership agreement in proportion of 33% and 67% respectively.
>
> 2. 1st and 2nd Respondents be and are hereby ordered to stop interfering in the management of both stand 147 and 151 Mbuya Nehanda Street, and collection of rentals on stand 151 Mbuya Nehanda Street, Harare as dictated by the partnership agreement.
>
> 3. The 1st, 2nd and 3rd Respondents jointly and severally each paying the other to be absolved pay the costs of this application on an attorney client scale."

The application stems from a partnership or joint venture agreement entered into by the applicant, on the one hand, and the first and second respondents, on the other hand.The agreement involved the management of Stands No. 147 and 151 Mbuya Nehanda Street, Harare by the applicant, and the sharing of rental income in the proportion of 33 % for the applicant and 67 % for the first and second respondents. In their opposition to the application, the respondents are challenging the competence of the relief being sought. They aver there is no valid basis for an interdict. They are also challenging the subsistence of the partnership agreement itself.

POINT *IN LIMINE*

At the hearing of the matter, the applicant raised a point *in limine*, which was to the effect that there is no valid opposition to the application. This was so because the opposing affidavit filed by the first and second respondents was defective, in that it had a computer-generated date.

The same applies to the third respondent's opposing affidavit. The applicant avers that the affidavits are fatally defective as there is no evidence that they were signed in the presence of the commissioner of oaths.

Counsel for the applicant and the respondents filed supplementary heads of argument dealing specifically with this point. They also made oral submissions. After hearing argument from counsel on behalf the parties, I reserved judgment on the preliminary point.

APPLICANT'S ARGUMENT

The applicant emphasises the point that an affidavit is a sacrosanct and solemn document that must be attested properly. Both the deponent and the commissioner of oaths ("commissioner") must be present during the attestation process.

As evidence that the process was properly executed, the applicant avers that the date on an affidavit must be personally endorsed by the commissioner. It must not be typed in by a typist or machine. The essence of the applicant's submissions is encapsulated in paragraph 7 of its supplementary heads of argument, wherein is stated:

> "The legal position on the proper commissioning of affidavits is both clear and inviolable. It is the Commissioner of Oaths-not a typist, nor a machine that must personally endorse the date on which the oath is administered. A valid attestation requires that the Commissioner, contemporaneously with the deponent's appearance, record the date and verify the oath-taking. The moment of swearing is not retrospective, presumptive, or implied by a pre-typed digital date. Where an affidavit is filed bearing only a computer-generated date-predating or detached from any visible act of attestation by the Commissioner-it is not an affidavit in the eyes of the law, but an unsigned draft masquerading as a sworn statement."

The applicant points out that a computer-generated or typed date means that it is not the commissioner who endorsed the date at the time the oath was taken. This is a material defect that vitiates the affidavit. The applicant contends that it is not a mere technicality. It goes to both the form and substance of the affidavit and nullifies the notice of opposition. A pleading that is fatally defective cannot be cured by an amendment.

The applicant contends that the affidavit, being fatally and incurably defective, renders the opposition a nullity. The application must therefore be treated as unopposed. Reference was made to the cases of *Ariston Management Services v Econet Wireless Zimbabwe Limited* SC 123/23., *Mike Mandishaya v Maria Sithole* HH 798/15, *Ndoro & Anor v Conjugal Enterprises (Pvt) Ltd & Anor* HH 814/22, *Rock Chemical Fillers (Pvt) Ltd v Bridge Resources (Pvt) Ltd & Ors* 2014 (2) ZLR 30 (H).

RESPONDENTS' ARGUMENT

The respondents aver that the applicable legislation does not proscribe a typed in date. In this regard, they refer to the Justices of the Peace and Commissioner of Oaths Act [*Chapter 7:09*] and the regulations made thereunder.

The respondents contend that the applicant has not pointed out any violation of the legislation concerned. In this regard, the applicant submits that statutory provisions override the common law.

Commenting on the *Ariston* case, *supra*, which the applicant has referred to, the respondents contend that the facts in that case are distinguishable from the instant case. In the *Ariston* matter, the date was completely omitted from the affidavit. *In casu*, the date typed in was entered on the same date the affidavit was commissioned.

Further to that, the respondents point out that the *Ariston* case was set aside by the Constitutional Court, CCZ 8/24. There is therefore no Supreme Court judgment that supports the applicant's position.

The respondents highlight the point that one cannot challenge the validity of an affidavit that does not offend legislation. The basis of the applicant's challenge is a rule of practice, not a rule of law.

On the *Mandishaya* case, *supra*, which the applicant has also relied on, the respondents contend that it is again distinguishable. In that case, the commissioner commissioned the affidavit several months after it was signed by the deponent.

The respondents assert that their affidavits fully comply with the requirements for the valid attestation of affidavits. Relying on the case of *S v Hurle & Ors* 1998 (2) ZLR 42, the respondents outlined the following as the steps necessary for the proper administration of an oath:

a. The deponent must appear before the commissioner of oaths.
b. The commissioner must call upon the deponent to swear that the deposition is true in every respect.
c. The deponent must sign the affidavit in the presence of the commissioner.

d. The commissioner of oaths must then proceed to sign the affidavit.

In buttressing their argument, the respondents have referred to the cases of *Chikomba Rural District Council v Pasipanodya* SC 26/12, *Ariston Management Services v Econet Wireless, supra, Firstel Cellular (Pvt) Ltd* v *Net One Cellular (Pvt) Ltd* 2015 (1) ZLR 94 (S), *S v Hurle & Ors*, *supra*,*Mandishaya v Sithole, supra*, *Sekete & Ors v Arican Business Women Association* HH 224/24.

THE LAW

Where there is legislation governing a particular area of the law, the starting point is an examination of such legislation. On the administration of oaths, the applicable legislation is the Justices of the Peace and Commissioner of Oaths Act [*Chapter 7:09*] ("the Act").

In s 8, the Act provides two reasons why a commissioner cannot administer an oath. Firstly, he cannot administer an oath on any matter prohibited by statutory regulations. Secondly, where he has suspicion that the deponent is not making the oath freely and voluntarily.

The relevant regulations are the Justices of the Peace and Commissioner of Oaths (General) Regulations, Statutory Instrument 183 of 1998. The notable prohibition is that a commissioner cannot administer an oath in a matter in which he has an interest.

What can be said about the legislation is that it is broad and general. It gives the broad guidelines or parameters within which a commissioner must operate. It does not give what one may call the operational details. These are the practical steps the commissioner must take in order to properly administer an oath. This leaves the courts at large to develop the rules/principles necessary for the attestation of affidavits. Indeed, such rules have evolved through the courts and have provided the necessary guidance. See *Firstel Cellular (Pvt) Ltd v Net One Cellular (Pvt) Ltd, supra*.

Among the leading cases is that of *S v Hurle, supra*. In that case, Gillespie J stated, at p 50 F-G:

> "A justice of the peace, or a commissioner of oaths, called upon to attest a document, has a duty, exemplified by the solemnity of the oath he is permitted to administer. He is obliged, without fail, to have the deponent appear before him. He has no excuse for not administering the oath, for not calling upon the deponent to swear that the deposition is, to the best of his knowledge true in every respect. A deponent's signature has to be affixed in the presence of the commissioner. The commissioner's own signature is an assurance that all these procedures have been complied with. Based upon the trust the administration of justice reposes in a commissioner, it presumes that all these procedures have been regularly complied with."

The fundamental requirement clearly emerging from this case is that the deponent personally appears before the commissioner. The commissioner administers the oath in the presence of the deponent. This point was underscored in the case of *Mandishaya v Sithole, supra*, where MAKONI & CHITAKUNYE JJ (as they then were) succinctly stated:

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously." (underlining added for emphasis)

It is important to note, from the underlined portion of the citation above, the commissioner puts in the date at the time of the commissioning of the affidavit. The deponent does not come with an affidavit that already bears a typed in or computer-generated date, MATHONSI J (as he then was) emphasized the same point in *Rock Chemical Fillers (Pvt) Ltd v Bridge Resources (Pvt) Ltd, supra:*

> "Quite often legal practitioners indulge in the unfortunate and unbecoming behaviour of signing 'affidavits' in their capacities as ex officio commissioners of oaths, not only without satisfying themselves that an oath is taken but also in the absence of the 'deponent'... It is the height of dishonesty for a commissioner to authenticate a signature he has not seen the signatory sign, but even worse for him to sign a blank document, hoping that the intended deponent's signature would be appended later."

On the specific issue of a computer-generated date, decisions of this court have held this to be improper to the extent of rendering the affidavit fatally defective. The only case cited where a position that appears to be contrary is that of *Sekete & Ors v African Business Women Association, supra.* This was so because the court found a basis for distinguishing the case from the others.

In *Ndoro & Anor v Conjugal Enterprises, supra*, a point *in limine* was raised by applicant's counsel that the opposing affidavit was fatally defective, in that the only date there was generated by a computer. DEME J stated, at p 5-6:

> "In *casu*, the opposing affidavit does bear a computer-generated date just like the opposing affidavit in the case of "*Twin Castle Resources*" (*supra*). The opposing affidavit, in the relevant portion, simply states:

"Thus done and dated at Harare this 23rd day of September 2019".

The commissioner of oaths went on to append his signature. The date for the administration of the oath remains a mystery. One wonders whether the oath was administered on the date specified by the computer or on a future date……
It is apparent that one cannot verify whether the deponent took the requisite oath if an affidavit is commissioned in this way. The affidavit prepared under such circumstances becomes incredible. See the case of *Mike Mandishayika* v *Maria Sithole*[1]……
Thus, there are many dangers of accepting an improperly commissioned affidavit. It is apposite that there must be strict adherence to the proper methods of commissioning affidavits. Any compromise would bring justice into disrepute. Reference is made to the case of *Tawanda* v *Ndebele*[2], where the court commented as follows:

> "It is my view, therefore, that there should be no compromise by seeking to accept a questionably authenticated document either for academic or expedience purposes. The rules of this court have listed certain officials who are authorised to authenticate documents and those rules should be applied in *toto*."

In *Twin Castle Resources (Pvt) Ltd v Paari Mining Syndicate* HH 153/21, TSANGA J stated, at p 5-6:

The main notice of opposition itself was equally said to be defective. Whilst the main notice of opposition bore a stamp by the Commissioner of Oaths, it was silent as to when Luxton Mawanga who swore to the affidavit, had appeared before the Commissioner of Oaths. It merely had one computer generated date as to when the deponent had signed. It was therefore argued that effectively there was no notice of opposition before me. Applicant's lawyer Mr Chiuta, drew on the case of *Mike Mandishayika v Maria Sithole* HH 798/15 to bolster this point……
See also *S v Hurle & Others (2) 1998(2) ZLR 42 and Firstel Cellular (Pvt) Ltd v NetOne Cellular (Pvt) Ltd S-1-15.*

The notice of opposition most certainly did not have the date on which the oath was administered. The supplementary documents were even more defective as illustrated. Clearly, in light of the *Mandishika* case, the affidavits were indeed defective for the reasons outlined. The point *in limine* regarding the defective affidavits and that there was no valid notice of opposition before me is upheld."

In the matter of *Tony Renato Sarpo* v *Wayne Williams & Ors* HH 493/23, at p 5, MHURI J Stated:

"In the Twin Castle Resources (Pvt) Ltd (supra) matter, emphasis was made on the words, "The Commissioner must also endorse the date on which the oath was so administered. The acts must occur contemporaneously". I am also inclined to put emphasis on the same words in particular the words "….must also endorse the date …. These acts must occur contemporaneously". A computer-generated date in my view makes it difficult to know whether the deponent appeared before the commissioner of oaths on the same date printed on the affidavit. <u>As submitted by applicant, correctly so in my view, what is key is that the oath, signing and date should happen contemporaneously. The date portion must be blank so that the Commissioner of Oaths endorses the date.</u>" (underlining added for emphasis)

MAMBARA J expressed the same sentiments in *Chipo Maruku v KATT Construction (Pvt) Ltd & Ors* HH 442/24. The learned judge remarked, at p 2-3:

> "Affidavits are critical in legal proceedings, particularly in motion applications. An affidavit must be signed in the physical presence of a commissioner of oaths, with the date of execution being contemporaneously endorsed by the commissioner. This is intended to ensure that the affidavit is a genuine document made under oath, with the commissioner verifying the deponent's identity and the authenticity of the oath-taking.
> The courts in Zimbabwe have consistently upheld these requirements. In *Ndoro v Conjugal Enterprises (Private) Ltd* HH814/22, the High Court ruled that an affidavit without a properly commissioned date is defective. Similarly, in *Twin Castle Resources (Pvt) Ltd v Paari Mining Syndicate* HH153/21, the court reiterated that affidavits must be properly signed and dated, with the physical presence of the deponent before a commissioner of oaths.
> In the present case, the respondent's affidavit was electronically signed, and the date was electronically inserted. The applicant's counsel argued that this contravenes the procedural requirement that affidavits be signed and dated in the presence of a commissioner of oaths, and as such, the respondent's affidavit is invalid. The court must determine whether the electronically inserted date is sufficient to comply with the formal requirements for affidavits under Zimbabwean law.
> The electronically inserted date raises concerns about whether the affidavit was properly commissioned. Given the strict procedural requirements outlined in the cases of *Ndoro* and *Twin Castle Resources*, this court finds that the electronically inserted date on the respondents' affidavit does indeed render it procedurally defective. The purpose of requiring the deponent's physical presence before a commissioner of oaths is to ensure that the affidavit reflects a genuine act of oath-taking, and the electronically inserted date undermines this assurance." (underlining added for emphasis)

In a judgment handed down as recently as 29 December 2025 in the case of *Nyangani Industries (Pvt) Ltd v Radico Khaitan Ltd* HH 872.25, DUBE JP clarified the law in the following terms:

> "In this jurisdiction, the procedure for commissioning an affidavit is not statutorily provided for in the Justices of the Pease and Commissioners of Oaths Act [*Chapter 7:09*] which is silent on the procedure for commissioning an affidavit. The requirements for commissioning of a valid affidavit are guided by case law authority which prescribes that the process of swearing to an affidavit involves a deponent to the affidavit appearing and signing it in the presence of a commissioner of oaths who in turn must append his or her signature on the document as well as endorse the date of signature and place where the affidavit was commissioned in long hand and duly stamp it with the his or her official stamp. The endorsement of the date on which the oath was so administered must be contemporaneously done with the signing of the affidavit. Endorsement of computer-generated dates recording the date of signature of the affidavit is discouraged. Failure to endorse the place and date where an affidavit was commissioned renders it **irregular or defective,** leading in the case of an opposing affidavit in an application being struck out."

If there are any lingering doubts regarding this point, these are dispelled by the remarks of the Supreme Court in a recent judgment handed down in July 2025, in the case of *Robert Kwesiga & Anor v Prosecutor General & Ors* SC 58/25.The Supreme Court remarks were to the effect that the court *a quo* was wrong in holding that the date on which an oath is

administered can be computer-generated. The Supreme Court endorsed the decision in *Mandishayika, supra*. It is significant to note that the Supreme Court indicated that since the *Mandishayika* decision was made by two judges sitting on appeal, it was binding on the High Court. KUDYA JA stated, at p 8 paragraph [16]:

> " In dealing with the preliminary points raised, the court a quo held that the fact that the first respondent's founding and supporting affidavits bore a computer-generated date as the date when the oath was taken did not invalidate them. The court a quo, held that there is no law that prescribed that the date on which the oath is administered should be reflected in long hand. We note in passing that the finding was contrary to the *Mandishayika* case, *supra*, a decision by two judges on appeal, which on the basis of the doctrine of stare decisis bound the court *a quo*. We further observe that, unbeknown to the parties and the court a quo, the authorities cited in para [13] above, were confirmed by this Court in *Ariston Management Services v Econet Wireless Zimbabwe Ltd* SC 123/23."

As already indicated, the judges in the *Mandishayika* case clearly stated that the commissioner of oath must endorse the date on which the oath was administered and these acts must occur contemporaneously.

ANALYSIS AND APPLICATION OF THE LAW

From the authorities referred to, it is clear that the signing and dating of an affidavit must be done contemporaneously. These acts are an integral component of the process of attestation. They affect the authenticity and integrity of the affidavit. This is the common thread that runs through the cases cited.

The affidavit must, *ex facie*, show that it was *signed and dated* contemporaneously. The commissioner indicates this by *endorsing the date and place* where the attestation was done. A pre-typed, computer-generated date presents no evidence or confirmation of contemporaneity. To the contrary, it raises suspicion of the lack of it.

In casu, the commissioner cannot be said to have endorsed the date on the opposing affidavit as the date that is available thereon is a computer-generated one. It makes it difficult for the court to be certain as to which date the deponent made an oath before the commissioner. There is uncertainty as to whether the oath was properly administered in accordance with the law. Therein lies the defect in a computer-generated date.

Having regard to the weight of authority, as reflected in the cases cited, I come to the conclusion that the computer-generated dates in the opposing affidavits render them defective. Consequently, they vitiate the notices of opposition in support of which the affidavits have been filed.

However, I will not take the route urged by the applicant, which is to treat the application as unopposed. The consequence would be a default judgment in favour of the applicant, provided of course its case has merit notwithstanding the absence of opposition. I am inclined to adopt the approach taken by DUBE JP in *Nyangani Industries v Radico Khaitan, supra,* the learned judge president disposed of the matter as follows:

> "That being the case, the respondent's opposing affidavit is invalid and is struck out. The matter not having been argued on the merits, I have in the exercise of the discretion reposed upon me resolved to strike the matter off the roll so as not to non-suit the respondent and not grant default judgment as prayed for."

The instant matter can be similarly dealt with. This will leave it open to the respondents to take the necessary remedial action available at law. However, I am of the view that striking the matter off the roll will unduly burden the applicant, as the procedure thereafter requires an application for reinstatement. It is not the applicant who is at fault, but the respondents. It seems to me a preferable procedure is one that avoids the requirement for reinstatement. In this regard, I am persuaded by the approach adopted by DEME J, in the *Bruce Ndoro* case, *supra*, of removing the matter from the roll. The order for removal from the roll was coupled with an order that the respondent rectifies the defect within a stipulated period. Should the respondents fail to comply, they will have no one but themselves to blame for any adverse consequences that may ensue. The learned judge stated, at p 6:

> "Ms Ruwona motivated the court to regard the matter as an unopposed matter. I disagree with this approach as the defect raised is not a fatal one. Rather, it is a remediable defect. For that reason, it is appropriate to ensure that the respondents are given time to cure the defect concerned by removing the matter from the roll. This is in harmony with the need to uphold the right to fair trial established in terms of S 69 of the Constitution. The right to fair trial is one of the rights that is non-derogable according to S 86(3) of the Constitution. Deeming the present application as an unopposed case will not bring finality to litigation. The applicants will only be entitled to default judgment under such circumstances. The respondents may then seek to set aside the default judgment which will prolong the litigation between the parties."

LAW REFORM

In both the *Chipo Maruku* and *Nyangani Industry* cases, *supra*, the court made some *obiter* remarks on the reform of the law which are worth mentioning again.

It seems to me that the insistence on physical presence, almost to the point of being pedantic, has presented the legal challenges in the cases looked at. In a world that has increasingly become dependent on electronic and virtual forms of communication, such insistence ignores genuine difficulties associated with physical presence. In the fast paced, modern commercial world, which often involves complex trans jurisdictional transactions,

electronic communication has become the norm. This has necessitated the use of electronic signatures and other forms of electronic authentication of important documents. A legal framework that insists on handwritten dates and signatures is certainly lagging behind.

In the *Maruku* case, MAMBARA J observed that in other jurisdictions, like South Africa and Australia, legislation has been passed which accepts the validity of electronic signatures on documents, including affidavits. The learned judge made the following insightful remarks, at p 4-5:

> "Despite the growing recognition of electronic signatures in jurisdictions like South Africa and Australia, Zimbabwean law has not yet caught up with these developments. The current legal framework, as demonstrated in the cases discussed earlier, remains rooted in traditional procedural requirements that mandate physical presence before a commissioner of oaths for the commissioning of affidavits. This reliance on physical signatures and contemporaneous oath-taking limits the flexibility of the legal system and makes it difficult to accommodate technological advancements.
> The Justices of Peace and Commissioners of Oaths Act [Chapter 7:09] which governs the administration of oaths in Zimbabwe, does not currently provide for the use of electronic signatures in legal documents. Given the global shift toward electronic transactions and the growing reliance on digital platforms for legal and commercial transactions, there is a clear need for legislative reform in Zimbabwe to incorporate electronic signatures into the legal framework.
> Such reforms could draw inspiration from the ECTA in South Africa and the ETA in Australia, both of which have successfully integrated electronic signatures into their legal systems. By amending the Justices of Peace and Commissioners of Oaths Act to recognize electronic signatures, Zimbabwe could modernize its legal system and improve access to justice, particularly in cases where physical presence before a commissioner of oaths is not feasible.
> However, any legislative reform must include safeguards to ensure the reliability and security of electronic signatures. This could involve the use of advanced electronic signatures for affidavits and other legal documents, as well as stringent verification processes to confirm the identity of the signatory and the integrity of the document."

A similar call for reform was made by DUBE JP in the *Nyangani Industries* case, at p 9-10:

> "22. What has exercised my mind is why in this age of technological advancements that allow video conferencing , virtual online sessions and digital signing, affidavits cannot be signed digitally and remotely thereby making processes faster and more convenient. This jurisdiction would be lagging behind if strict adherence to the requirement to sign an affidavit in the presence of the commissioner of oaths is maintained. In South Africa ,there is ongoing debate on resort to commissioning of affidavits virtually .See an article by *Eugene Bester and Loyiso Bavuma titled , "Commissioning affidavits virtually:Yay or Nay"* in which the subject of virtual commissioning of affidavits was discussed in the face of legislation that makes provision for commissioning of affidavits in the presence of the

commissioner of oaths. The Justices of the Peace and Commissioners of Oaths Act 16 of 1963 (Act) as read with the accompanying Regulations , guides the commissioning of affidavits and stipulates that an affidavit should be commissioned in the presence of the commissioner of oaths. See L*exisNexis South Africa (Pty) Ltd v Minister of Justice and Correctional Services* [2024] ZAGPPHC 446. Legal opinion in that country seems to be shifting to accommodate technological developments. In *Knuttel N.O. and Others* v *Bhana and Others* [2022] 2 ALL SA 201 (GJ), a founding affidavit was administered virtually during the COVID-19 period in circumstances where the deponent was unable to sign it before a commissioner of oaths. The court relied on *S v Munn* [1973] (3) SA 734 (N.C.D.) holding that the said regulations are directory rather than peremptory and that there was, substantial compliance with the requirements of the law.

23. In *ED Foodegulates S.R.L v Africa's Best (Pty) Ltd* [2024] ZAGPJHC 1619, affidavits were commissioned *via* video conferencing with the deponent in a different country from the commissioner of oaths. The court admitted the affidavits into evidence holding that courts should "*open themselves to the modern trend of technology*" and finding that there had been substantial compliance with the requirements of the Regulations.

24. In the absence of a legal framework governing the actual process of commissioning affidavits in this jurisdiction, the default position to adopt in commissioning affidavits is that, an affidavit must be signed in the presence of a commissioner of oaths. The mischief behind this approach is that endorsing the name of the place where the affidavit was commissioned confirms the location where the deponent appeared and signed the affidavit before the commissioner of oaths. The objective of these requirements is the provision of a clear record of where and when the affidavit was made and helps to establish the admissibility and validity of the document.

25. I see no reason why an affidavit cannot be signed and commissioned virtually or through video conferencing. A commissioner of oaths commissioning an affidavit virtually or through video conferencing is still able to observe the signing of the affidavit, identify the deponent to the affidavit, verify the deponent's identity and signature and confirm his or her awareness of the contents of the affidavit as well as assess his or her capacity and willingness to take the oath after which he may append his or her own signature on the affidavit electronically. We live in a global world; courts should be seen to be keeping up with modern trends by embracing technological developments and promoting the ease of doing business."

I fully associate myself with the sentiments expressed in the two cases. There is need for the legislature to revisit the Act and bring it abreast with the developments in electronic communications.

DISPOSITION

In the absence of legislative intervention, the law is as explained above. For the reasons already stated, the proper course of action is to order that this matter be removed from the roll.

It is accordingly ordered that:

1. The application be and is hereby removed from the roll.
2. The respondents be and are hereby directed to file duly attested opposing affidavits within 10 days of the granting of this order and thereafter the matter shall proceed to a hearing on the merits in terms of the rules.
3. Costs shall be in the cause.

MANYANGADZE J …….

Zinyengere Rupapa Legal Practitioners, applicant's legal practitioners
Garabga, Ncube & Partners, respondents' legal practitioners